

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 2516 OF 2012

Md. Nobir Hossain and others

----- Defendant-Respondents-Petitioners

=Versus=

Sree Kedar Chandra Roy and others

----- Plaintiffs-Appellants-Opposite Parties

Mr. Md. Golam Noor, Advocate

----- For the Petitioners

Mr. Rowshan Alam Khan, with

Mr. Arun Kumar Roy, Advocates

----- For the Opposite Party Nos. 1-4

Heard on: 10.01.2018

Judgment on: 18.01.2018.

At the instance of the present defendants-respondents petitioners, Md. Nobir Hossain and others, this Rule has been issued calling upon the opposite party Nos. 1-4 to show cause as to why the judgment and decree dated 09.04.2012 passed by the learned Additional District Judge, Panchagarh in Other Class Appeal No. 96 of 2010, reversing the judgment and decree dated 27.10.2010 passed by the learned Assistant Judge, Debigonj, Panchagarh in Other Class Suit No. 24 of 2004 dismissing the suit should not be set aside.

The relevant facts for disposal of the present Rule, *inter-alia*, are that the present opposite party Nos. 1-4 as the plaintiffs filed the Other Class Suit No. 24 of 2004 in the court of the learned Assistant Judge, Debigonj, Panchagarh for declaration of title in respect of land measuring 2.72 acres mentioned in the schedules of the plaint and also

for declaration that the partition deed No. 8508 dated 22.12.1982 was illegal void and not binding upon the plaintiffs. The plaint contains that one Poygam Ali was the original owner of the land measuring 8.30 acres in C.S Khatian No. 887 and S.A. Khatian No. 851. One Emdadul Hoque Prodhan was owner of land measuring 2.35 acres, 7.55, 3.64 and 3.11 acres in the C.S. and S.A. Khatian. The said Poygam Ali settled the land by way of Patton in favour of one Jagannath Kumar Roy and others and the Emdadul Hoque Pradhan also settled the land in favour of several persons as mentioned in the plaint and the land was recorded in their respective names. The plaintiff Nos. 2 and 4 and the predecessor of the plaintiff Nos. 2 and 4 have been possessing land measuring 2.20 acres in different khatians. The present plaintiff opposite party finally were entitled to the land measuring 2.72 acres by way of purchase and inheritance which was denied by the defendant on 01.02.2004 thus they filed the suit.

The present petitioners as the defendant Nos. 1 and 10 contested the suit by filing a written statement denying the statements made in the plaint. It is contended that S.A. Khatian Nos. 806, 807, 783 and 893 were originally recorded in the name of Bighanu Ram who died leaving behind five sons who inherited the land. The said five sons subsequently sold land in favour of Md. Pomij Uddin, the predecessor of the present defendant petitioner No. 1, by the sale deed dated 22.01.1973, 22.11.1973, 26.04.1973, 19.05.1973, 19.05.1973, 21.09.1973, 22.02.1969, 26.04.2000, 26.04.2000 and 23.02.1982. Subsequently, the present defendant petitioners and other co-owners

executed and registered the amicable partition deed No. 8508 dated 23.02.1982 and pursuant to the said partition deed, the land was mutated in their respective names within the knowledge of all concern.

After hearing the parties the learned trial court decreed the suit on 12.03.2007. Being aggrieved the present defendant petitioners preferred the Other Class Appeal No. 41 of 2007 in the court of learned District Judge, Panchgarh, which was heard by the learned Joint District Judge who allowed the appeal on 19.05.2009 and the case was sent back on remand in the trial court for amending the plaint as per law. After hearing the Title Suit No. 24 of 2004 on remand, the learned trial court dismissed the suit by his judgment and decree dated 27.10.2010. Being aggrieved the present plaintiff opposite parties preferred the Other Class Appeal No. 95 of 2010 in the court of learned District Judge, Panchgarh which was heard by the learned Additional District Judge, Panchgarh on transfer who by his judgment and decree dated 09.04.2012 allowed the appeal by setting aside the judgment and decree passed by the learned trial court. This revisional application has been filed under Section 115(1) of the Code of Civil Procedure challenging the legality of the said impugned judgment and the present Rule has been issued thereupon.

Mr. Md. Golam Noor, the learned Advocate appearing for the petitioners submits that considering the frame work of the plaint, the plaintiffs failed to give specification of the suit land for sufficient identification of the suit land as required under Order VII Rule 3 of

the Code of Civil Procedure which is mandatory requirement of law and as such, as the plaintiffs failed to prove their title they would not be entitled to get any decree of title simplicitor without partition of the disputed land.

He also submits that the learned trial court was pleased to make specific observation to that effect but the learned appellate court without considering the findings of the learned trial court and without applying its judicial mind to the facts and circumstances of the case most illegally and arbitrarily allowed the appeal which is an error of law resulting an error in the decision occasioning failure of justice, therefore the present Rule should be made absolute

The Rule has been opposed by the present opposite party Nos. 1-4.

Mr. Rowshan Alam Khan, the learned Advocate, appearing along with Mr. Arun Kumar Roy the learned Advocate for the opposite party Nos. 1-4, submits that the learned trial court failed to consider the evidence produced by the parties in support of the respective case however, the learned appellate court properly reversed the judgment of the learned trial court on the consideration that the prayer of the plaintiffs were based upon the documentary and oral evidence which have been exhibited in the trial court out of the total land of co-owners, as such, the learned appellate court committed no error of law thus the Rule should be discharged.

The learned Advocate further submits that the suit filed by the present plaintiff opposite parties for declaration that the amicable

partition deed dated 22.12.1982 did not include the present opposite parties who had been the admitted co-owners of the suit land, therefore, the partition deed was not binding upon the present opposite parties.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under Section 115 (1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and decree and also perusing the materials in the lower court records, it appears to me that the original opposite parties filed a title suit claiming title upon the land measuring 2.72 acres and also for declaration that a partition deed executed by the present petitioners was illegal and not binding upon them. Both the parties adduced documents and oral evidence by way of deposition could prove that they were co-owners of the respective land but the plaintiff opposite party filed the suit without specifying or identifying lawfully as to the lands because the claimed land was an ejmali or joint ownership, therefore, it is difficult to give any declaration of title upon any unspecified land.

The present plaintiff opposite parties also claimed that the amicable partition deed dated 22.12.1982 was a partition deed among some of the admitted co-owners but by excluding the other co-owners who were the present plaintiff opposite parties, as such, the said partition deed had created a confusion and dispute among the parties which prompted the present plaintiff opposite parties to file the suit.

The learned Advocate for the petitioner argued that the plaintiff opposite parties filed the suit for cancelation of the said partition deed without depositing the proper advaloram court fees thus the suit was not sustainable. I have carefully examined the judgments of both the court where the learned courts below categorically stated that the court fees were sufficient because the partition deed in question was not only claim to be canceled but also for not binding upon them, as such, if a document is declared to be not binding and this matter has not been raised in the courts below, thus this revisional court cannot take this matter afresh to consider in this stage of the case.

On the basis of the given factual aspects in this case and the relevant law thereof, I consider that both the parties could prove their respective land as co-owners therefore a partition of the total land is an appropriate course to settle the disputes among the parties instead of continue with the present suit.

I have considered the judgments and decree passed by the court below finding different matter in different ways therefore both the courts committed error of law. The learned trial court came to a wrongful conclusion on the basis of the following findings:

“তাছাড়া মোকদ্দমায় বাদী শুধু মাত্র নির্দিষ্ট জমিতে স্বত্বের ঘোষণার প্রার্থনায় আনয়ন করায় মোকদ্দমাটি সঠিক ভাবে আনীত করা হয় নাই প্রতীয়মান হয়। কেননা বাদী নালিশী খতিয়ান সমূহের জমা-জমি-ত রেকর্ডীয় মালি-কর ওয়ারিশ হি-স-ব আংশিক জমি। বাদী করিয়াছেন এবং বিবাদীরা ও উক্ত খতিয়া-নর জমি-ত ভোগদখলীকার আ-ছেন। এমতাবস্থায় বা-টায়ারা আকা-র প্রতিকার প্রার্থনা না করিয়া শুধু মাত্র নিজ অংশের জমিতে ঘোষণা মূলক ডিক্রির মোকদ্দমা আনয়ন করা আইনানুগ ও যুক্তিসংগত হয় নাই।”

On the other hand the learned appellate court below came to an unlawful conclusion on the basis of the following findings:

“বিজ্ঞ নিম্ন আদালত শুধু মৌখিক সাক্ষ্যের উপর নির্ভর করিয়া তর্কিত রায় প্রদান করেন। বিজ্ঞ নিম্ন আদালতের ইং ২৭/১০/১০ তারিখের রায় ও ইং ০২/১১/২০১০ তারিখের স্বাক্ষরিত ডিক্রী আইন ও অবস্থাম-ত রক্ষণীয় ন-হ। উক্ত রায় ও ডিক্রী রদ রহিতযোগ্য। তফসিলি সম্পত্তিবাবদ বাদি পক্ষের দখল এর ভাবধারা এবং উক্ত সম্পত্তিবাবদ তর্কিত ৮৫০৮ নং বন্টন দলিলে পক্ষ না করিয়া উক্ত দলিল রেজিঃ হওয়ায় বাদি/আপীলকারী পক্ষের স্বত্ব মেঘাচ্ছন্ন (Clouded) ও ক্ষতিগ্রস্ত হওয়ায় বাদি/আপী-লন্ট প-ক্ষের মূল মকদ্দমাটি অত্র আকা-র ও প্রকা-র চলি-ত পা-রাবাদি আপী-লন্ট পক্ষ প্রার্থীত ম-ত প্রতিকার পাইতে পারেন। উক্ত প্রতিকার পাই-ল আর কোন প্রতিকা-রের প্র-য়োজন নাই। ”

In view of the above discussion and after perusal of the judgment of the courts below, I consider that both the court should have considered the evidence as to the co-ownership of the land by both the present petitioners and opposite parties, therefore, the courts should have decided the matters in order to settle the main dispute without allowing further dispute. In such circumstances, I am inclined to dispose of the Rule by setting aside the judgment and decree passed by the learned trial court and appellate court below.

I am taking this decision because it is evident from judgments that the present plaintiff opposite parties could not specify the land for a declaration of title and admittedly the land they have claimed has been situated in a joint property, similarly, the amicable partition deed dated 22.12.1982 was executed among some of the co-owners by the present petitioners instead of all the co-owners of the same jote under the provision of law, therefore, the said partition deed is not binding

upon the present plaintiff opposite parties, therefore the parties may settle the matter by an amicable partition by including all the co-owners or by way of partition suit in order to finally settle the appropriate portion of land for the respective parties.

Accordingly, the Rule is disposed of.

The present defendant petitioners and plaintiff opposite parties may settle the disputes by entering into an amicable partition argument or a partition through a court as advised by including all the co-owners of the same joth.

The interim order of direction to maintain status quo in respect of possession and position granted at the time of issuance of the Rule is here by recalled and vacated.

The Section is directed to communicate this judgment and decree to the concern court immediately and the section is also directed to send down the lower court records at once.